

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JOSEPH WAGNER,

Index No.

Plaintiff(s),

-against-

SUMMONS

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
P.O. PEARCE MARTINEZ, SGT. LIM TAEJIN, LT. WILSON,
P.O. MICHAEL JOHN ANTIDORMI, MAMADOU DIAGANA,
P.O. JOHN DOES I-III* SGT. JOHN DOE 1*, and LT. JOHN DOE 1*

*Plaintiff is currently unaware of the names of
P.O. John Doe 1, P.O. John Doe 2, P.O. John Doe 3,
SGT. John Doe 1 and LT. John Doe 1

Basis of Venue
Place of Occurrence

+

Defendant(s).

-----X
To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Place of Occurrence: 276 Marion Street, Apt 3L, Brooklyn, NY 11233

Dated: New York, New York
August 1, 2018

Yours, etc.

HACH & ROSE, LLP
Attorneys for Plaintiff(s)
112 Madison Avenue, 10th Floor
New York, NY 10016
T. 212.779.0057
F. 212.779-0028

By: Halina Radchenko, Esq.



To: CITY OF NEW YORK
City of New York Comptroller
One Center Street
New York, NY 10007

CITY OF NEW YORK
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
c/o City of New York Comptroller
One Center Street,
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza Path
New York, NY 10007

P.O. PEARCE MARTINEZ
c/o 81st Precinct
30 Ralph Avenue
Brooklyn, NY, 11221-3607

SGT. LIM TAEJIN
c/o 81st Precinct
30 Ralph Avenue
Brooklyn, NY, 11221-3607

LT. WILSON
c/o 81st Precinct
30 Ralph Avenue
Brooklyn, NY, 11221-3607

P.O MICHAEL JOHN ANTIDORMI
30 Ralph Avenue
Brooklyn, NY 11233

MAMADOU DIAGANA
1 Tompkins Avenue, Apt. 1
Brooklyn, NY 11206

P.O “JOHN DOE 1”,
c/o 81st Precinct
30 Ralph Avenue
Brooklyn, NY, 11221-3607

P.O “JOHN DOE 2”,
c/o 81st Precinct
30 Ralph Avenue
Brooklyn, NY, 11221-3607

P.O.“JOHN DOE 3”,
c/o 81st Precinct
30 Ralph Avenue
Brooklyn, NY, 11221-3607

SGT JOHN DOE 1
c/o 81st Precinct
30 Ralph Avenue
Brooklyn, NY, 11221-3607

LT. JOHN DOE 1
c/o 81st Precinct
30 Ralph Avenue
Brooklyn, NY, 11221-3607

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JOSEPH WAGNER,

Index No.

Plaintiff(s),

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
P.O. PEARCE MARTINEZ, SGT. LIM TAEJIN, LT. WILSON,
P.O. MICHAEL JOHN ANTIDORMI, MAMADOU DIAGANA,
P.O. JOHN DOES I-III* SGT. JOHN DOE 1*, and LT. JOHN DOE 1*

*Plaintiff is currently unaware of the names of
P.O. John Doe 1, P.O. John Doe 2, P.O. John Doe 3,
SGT. John Doe 1 and LT. John Doe 1

Defendant(s).

-----X
Plaintiff(s), JOSEPH WAGNER, by his attorneys, HACH & ROSE, LLP, as and for a
cause of action allege upon information and belief as follows:

PRELIMINARY STATEMENT

1. The Plaintiff brings this action for compensatory damages and attorney's fees for wrongful acts of Defendants THE CITY OF NEW YORK, P.O. PEARCE MARTINEZ, SGT. LIM TAEJIN, LT. WILSON, P.O. MICHAEL JOHN ANTIDORMI, P.O.s "JOHN DOE" #1-3 (said names being fictitious, as the true names are presently unknown), SGT JOHN DOE #1(said names being fictitious, as the true names are presently unknown) LT. JOHN DOE 1(said names being fictitious, as the true names are presently unknown) as Officers of the New York City Police Department, all acting under color of state law and pursuant to their authority, for their actions including but not limited to the false arrest, malicious prosecution, assault and use of excessive force against Plaintiff in violation of Plaintiff's rights as said rights are

secured by statutes and the Constitution of the State of New York and the Constitution of the United States, specifically 42 U.S.C. §§ 1983 and 1988.

2. This action is brought to recover compensatory damages against defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, compensatory damages as well as punitive damages against the defendants P.O. PEARCE MARTINEZ, SGT. LIM TAEJIN, LT. WILSON, JOHN DOE 1, JOHN DOE 2, SGT JOHN DOE 1 and LT JOHN DOE 1 for committing acts under the color of law which deprived the plaintiff JOSEPH WAGNER of rights secured by the Constitution and laws of the United States and State of New York and for assault, battery and personal injury.
3. That plaintiff served a verified Notice of Claim setting forth the time when, the place where, and the manner in which the claim arose, upon the defendants as required by General Municipal Law §50 and Public Authorities Law §1276 on or about November 7, 2017.
4. At least 30 days have elapsed since the service of the notice of said demand and adjustment or payment thereof has been neglected and/or refused.
5. That a hearing pursuant to General Municipal Law Section 50-H was held on April 10, 2018.
6. That this action is being commenced within one year and ninety days after the occurrence herein.

THE PARTIES

7. On or about August 9, 2017, and at all times herein mentioned, the Plaintiff, JOSEPH WAGNER, was and still is a resident of the County of Kings, State of New York;

8. On or about August 9, 2017, and at all times herein mentioned, the Defendant, MAMADOU DIAGANA, was and still is a resident of the County of Kings, State of New York;
9. This action falls within one or more of the exceptions set forth in CPLR Section 1602;
10. The cause of action herein arose in the County of Kings, State of New York;
11. At all times relevant hereto, defendant THE CITY OF NEW YORK (hereinafter, "CITY") is a municipality of the State of New York and owns, operates, manages, directs and controls the New York City Police Department, which employs the other named Defendants.
12. At all times mentioned, herein Defendant CITY operated, maintained, managed and controlled the Police Department of the City of New York (hereinafter, NYPD), and was responsible for the hiring, training, supervision, discipline, retention and promotion of the police officers, sergeants, lieutenants and/or employees of the NYPD.
13. At all times relevant to this action, defendants P.O. PEARCE MARTINEZ (hereinafter, "P.O. MARTINEZ), SGT. LIM TAEJIN (hereinafter, SGT. TAEJIN), LT. WILSON, P.O MICHAEL JOHN ANTIDORMI (hereinafter P.O ANTIDORMI), and P.O. JOHN DOES 1-3 (said name being fictitious, as the true names are presently unknown), SGT JOHN DOE 1(said names being fictitious, as the true names are presently unknown) LT. JOHN DOE 1(said names being fictitious, as the true names are presently unknown) are and were police officers employed by the NYPD, and acting under the color of state law. The police officers are being sued in both their individual and official capacities.

14. At all times relevant hereto and in all their actions described herein, said Defendants were acting under color of the statutes, ordinances, regulations, policies, customs and usages of the NYPD and CITY, pursuant to their authority as employees, servants and agents of the NYPD within the scope of employment and incidental to their otherwise lawful duties and functions as employees, servants, agents and police officers.
15. That the CITY was responsible for the hiring, training, supervision, discipline, retention and promotion of the police officers, sergeants, and/or employees of the NYPD.

STATEMENT OF FACT

16. On or about, August 9, 2017, Plaintiff, JOSEPH WAGNER, was lawfully present at the location known as Howard Deli Mart Inc., 276 Marion Street, Brooklyn, New York 11233.
17. On or about, August 9, 2017, Plaintiff JOSEPH WANGER, purchased a six pack of beer from said deli and proceeded walk to his home located at 276 .Marion Street, Brooklyn, New York 11233.
18. Plaintiff JOSEPH WAGNER sat down on his stoop and proceeded to have a discussion with his friends who were also located on the stoop.
19. On or about, August 9, 2017, Defendants P.O. MARTINEZ and P.O JOHN DOE 1 were called to the Howard Deli Mart to respond to a robbery.
20. P.O MARTINEZ approached the Plaintiff JOSEPH WAGNER and told him that he needed to make an arrest in connection with a six pack of beer which was stolen from the Howard Deli.

21. Plaintiff JOSEPH WAGNER told P.O MARTINEZ that he paid for the six pack of beer in his possession and that proof of purchase can be seen in the surveillance video of the Howard Deli Mart.
22. P.O MARTINEZ instructed the Plaintiff JOSEPH WAGNER to stand up and approach him. The Plaintiff once again stated that he did not steal anything and asked if they had watched the surveillance video from the Howard Deli Mart. The Plaintiff JOSEPH WAGNER also asked why he needed to approach the officer.
23. Suddenly and without warning or provocation, P.O MARTINEZ and P.O. JOHN DOE 1 approached the Plaintiff JOSEPH WAGNER, and forcibly placed him in handcuffs.
24. While taking the Plaintiff JOSEPH WAGNER to the police vehicle, P.O MARTINEZ or P.O. JOHN DOE 1 punched the Plaintiff in the area between his neck and his shoulder, he also forcibly struck the Plaintiff with his knee into his ribcage area.
25. P.O MARTINEZ and P.O JOHN DOE 1 forcibly threw the Plaintiff into the back of their police vehicle and then drove him to the 81st Precinct.
26. When the Plaintiff JOSEPH WAGNER arrived at the 81st Precinct he was having trouble breathing due to the injuries inflicted upon him by P.O MARTINEZ and P.O. JOHN DOE 1.
27. After the Plaintiff's complaints of breathing difficulty, Defendants P.O. MARTINEZ and JOHN DOE 1, brought Plaintiff, JOSEPH WAGNER to Interfaith Medical Center where he was diagnosed with contused ribs and a right shoulder tear.
28. The Plaintiff was hospitalized at Interfaith Medical Center overnight. He was handcuffed to the bed. P.O MARTINEZ and P.O. JOHN DOE 1 forbid the Plaintiff from answering questions to the medical personnel about how his injuries arose.

29. In the morning, P.O JOHN DOE 2 transported the Plaintiff to the 81st Precinct.
30. P.O JOHN DOE 2 took the Plaintiff into a dark room. The Plaintiff believed it to be an interrogation room.
31. SGT. TAEJIN and/or LT. WILSON and/or SGT. JOHN DOE 1 and/or LT. JOHN DOE 1, entered the room and asked the Plaintiff if he was going to have any problems with him. He asked the Plaintiff to tell him what happened between the Plaintiff and his Officers.
32. The Plaintiff was afraid and thought he would be once again be assaulted and battered. He replied nothing.
33. On or about, August 9, 2017, Plaintiff, JOSEPH WAGNER, was charged with petty larceny and resisting arrest.
34. In addition, members of the NYPD filed and/or provided false and misleading reports to the District Attorney's Office regarding the incident to support unfounded prosecution.
35. On or about, August 9, 2017, at approximately 12:45 PM, Plaintiff, JOSEPH WAGNER was transported to Central Booking in a 2015 Chevrolet Station Wagon Sport, owned by Defendants NYPD.
36. The 2015 Chevrolet Station Wagon was being operated by P.O. ANTIDORMI. P.O. JOHN DOE 3 was assisting P.O. ANTIDORMI in the transport of persons to Central Booking.
37. At the intersection of Dekalb Avenue and Nostrand Avenue, the motor vehicle operated by P.O. ANTIDORMI was involved in a collision with a motor vehicle operated by Defendant Mamadou Diagana.

38. On August 9, Plaintiff was transported to Kings County Criminal Court and arraigned under Docket Number 2017KN044361.
39. Plaintiff was forced to return to court numerous times to contest the false criminal charges against him. He was represented by the Brooklyn Defender Service.
40. The charge of petty larceny was dismissed.
41. That Defendant CITY, its agents, servants and/or employees, was negligent in failing to properly and adequately hire, train and instruct its police officers in the use of force during their daily activities, including conducting investigations and making arrests.
42. Plaintiff was unlawfully and forcibly arrested, subjected to excessive force and was injured due to the negligence, carelessness, recklessness, and/or intentional conduct of the Defendant CITY, by its agents, servants and/or employees, and more particularly, members of the NYPD.
43. As a result of the incident, Plaintiff spent approximately 24 hours in custody.

AS AND FOR A FIRST CAUSE OF ACTION:
FALSE ARREST & IMPRISONMENT

44. That the Plaintiff was unlawfully detained, arrested and imprisoned by agents, servants and/or employees of Defendant CITY, including Defendants P.O. MARTINEZ, SGT. TAEJIN, LT. WILSON, P.O. JOHN DOES 1-2, SGT. JOHN DOE 1 and LT. JOHN DOE 1, police officers who were acting within the scope of their employment.
45. That the aforesaid arrest and imprisonment was malicious, unlawful and not based upon a warrant, probable cause, and/or any other justification, and was therefore a false arrest and imprisonment.\

46. As a result of Defendants' aforementioned conduct, Plaintiff was subject to an illegal, improper and false arrest by the Defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the Defendants in criminal proceedings, without any probable cause, privilege or consent.
47. At the time of her unlawful arrest and imprisonment, Plaintiff had not committed nor attempted to commit any illegal act.
48. At the time of Plaintiff's unlawful arrest and imprisonment, the Defendants knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned arrest and imprisonment were false and not supported by probable cause.
49. That the aforesaid arrest and imprisonment was made with knowledge of and/or negligent and/or reckless disregard of the material falseness of the criminal allegations against Plaintiff.
50. The aforesaid incident, false arrest and imprisonment caused Plaintiff to suffer severe physical injuries, emotional and psychological distress, anguish, anxiety, fear and humiliation, loss of freedom, legal expenses and damage to her reputation.
51. By reason of the foregoing, the Defendants are liable to the Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION:
MALICIOUS PROSECUTION

52. Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "51" of the complaint as if fully set forth herein.

53. That the Defendants intentionally, knowingly, recklessly, negligently and with malice caused the commencement of a criminal prosecution against Plaintiff without probable cause; and that said prosecution terminated in favor of the Plaintiff.
54. Defendants were directly and actively involved in the initiation of criminal proceedings against Plaintiff.
55. Defendants lacked probable cause to initiate criminal proceedings against Plaintiff.
- Defendants acted with malice in initiating criminal proceedings against Plaintiff.
56. Defendants were directly and actively involved in the continuation of criminal proceedings against Plaintiff.
57. Defendants lacked probable cause to continue criminal proceedings against Plaintiff.
- Defendants acted with malice in continuing criminal proceedings against Plaintiff.\
58. The criminal proceedings were terminated in favor of Plaintiff when the charge of petty larceny against him were dismissed.
59. As a result of the malicious prosecution, the Plaintiff was caused to suffer and continues to suffer severe emotional and psychological distress, anguish, anxiety, fear and humiliation, legal expenses and damage to her reputation.
60. By reason of the foregoing, the Defendants became liable to the Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION:
ASSAULT and FAILURE TO INTERVENE

61. Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "60" of the complaint as if fully set forth herein.

62. That during the aforementioned arrest, Defendants, specifically P.O. MARTINEZ and P.O JOHN DOE 1, did intentionally, wantonly, brutally and maliciously assault and batter Plaintiff without cause, provocation or justification.
63. The aforesaid assault was carried out solely to inflict physical and mental harm upon Plaintiff.
64. At all times mentioned herein, Defendants P.O. MARTINEZ, SGT. TAEJIN, LT. WILSON, P.O. JOHN DOES 1-2, SGT. JOHN DOE 1 and LT. JOHN DOE 1, and other agents, servants and/or employees of Defendant CITY, were acting within the scope of their employment, under the color of authority, and in furtherance of their employer's interest.
65. That during the aforementioned assault and battery of the Plaintiff, other Defendants did witness said intentional, wanton, brutal and malicious assault and battery of Plaintiff and failed to intervene or otherwise attempt to stop the assault and instead stood by with complicity and allowed Plaintiff to be beaten.
66. As a result, Plaintiff was injured, internally and externally, became sick, sore, lame and disabled, and was caused to suffer and still suffers severe and permanent injuries, including fractured bones and lost teeth, and will continue to suffer pain and discomfort; and was caused to obtain continued medical care in an attempt to treat the aforesaid injuries.
67. By reason of the foregoing, Defendants are liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION:
EXCESSIVE FORCE

68. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs "1" through "67" with the same force and effect as if fully set forth herein.
69. The degree of force used by Defendants in effecting the arrest of Plaintiff was excessive, unreasonable and unwarranted.
70. Defendants' actions were intentional, willful, malicious, egregious, grossly reckless and negligent, unconscionable and unprovoked.
71. As a result of the excessive force and brutality, Plaintiff sustained significant injuries including fractured facial bones, substantial pain, bruising and swelling about his body, requiring medical treatment.
72. All of the aforementioned acts of Defendants constituted excessive force under the laws of the State of New York and they are liable for said damage.
73. By reason of the foregoing, Defendants are liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION:
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

74. Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "73" of the complaint as if fully set forth herein.
75. The aforementioned actions of Defendants were outrageous, malicious, shocking and exceeded all reasonable bounds of decency tolerated by the public community.
76. Defendants acted with the intent to cause Plaintiff emotional distress and/or acted under circumstances known to them which made it substantially certain that they would cause such emotional distress.

77. Defendants acted with utter disregard of the consequences of their actions. As a result, Plaintiff was caused to suffer the intentional infliction of emotional distress.

78. By reason of the foregoing, Defendants are liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION:
DEPRIVATION OF CIVIL RIGHTS

79. The Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "78" of the complaint as if fully set forth herein.

80. All of the aforementioned acts of Defendants, their agents, servants and employees were carried out under color of state law.

81. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States and in violation of 42 U.S.C. § 1983.

82. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of NYC and the NYPD, all under the supervision of ranking officers of said department.

83. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and rules of NYC and the NYPD, all under the supervision of ranking officers of said department.

84. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of his/her respective municipality/authority, which is forbidden by the Constitution of the United States.
85. By these actions, these Defendants have deprived Plaintiff of rights secured by the Fourth, Fifth, Eighth and Fourteenth Amendments to the United States Constitution, in violation of 42 U.S.C. § 1983, for which the Defendants are individually liable.
86. As a result, the Defendants are liable to the Plaintiff in a sum of money, which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A SEVENTH CAUSE OF ACTION:
CONSPIRACY TO VIOLATE CIVIL RIGHTS

87. Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "86" of the complaint as if fully set forth herein.
88. All of the aforementioned Defendants conspired to violate Plaintiff's civil rights by agreeing among themselves to falsely charge Plaintiff with crimes and falsely provide misleading reports to the District Attorney, as described above, in violation State and United States Constitutions and 42 U.S.C. § 1985, for which the Defendants are individually liable.
89. As a result, the Defendants are liable to the Plaintiff in a sum of money, which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A EIGHTH CAUSE OF ACTION
NEGLIGENT SUPERVISION, HIRING and RETENTION

90. Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "74" of the complaint as if fully set forth herein.
91. The actions of Defendant CITY constitute negligence in that Defendant CITY negligently trained or failed to train its agents, servants, or employees, including Defendants P.O. MARTINEZ, SGT. TAEJIN, LT. WILSON, P.O. ANTIDORMI ,P.O. JOHN DOES 1-3, SGT. JOHN DOE 1 and LT.JOHN DOE 1.
92. The actions of Defendant CITY constitute negligence in that Defendant CITY negligently supervised or failed to supervise its agents, servants, or employees, including Defendants P.O. MARTINEZ, SGT. TAEJIN, LT. WILSON, P.O. ANTIDORMI ,P.O. JOHN DOES 1-3, SGT. JOHN DOE 1 and LT.JOHN DOE 1.
93. The actions of Defendant CITY constitute negligence in that Defendant CITY negligently disciplined or failed to discipline its agents, servants, or employees, including Defendants P.O. MARTINEZ, SGT. TAEJIN, LT. WILSON, P.O. ANTIDORMI ,P.O. JOHN DOES 1-3, SGT. JOHN DOE 1 and LT.JOHN DOE 1.
94. Defendant CITY was negligent in its hiring of its agents, servants and/or employees, including Defendants P.O. MARTINEZ, SGT. TAEJIN, LT. WILSON, P.O. ANTIDORMI ,P.O. JOHN DOES 1-3, SGT. JOHN DOE 1 and LT.JOHN DOE 1, who Defendant CITY knew, or in the course of adequate and proper investigation should have reasonably known, were unfit to hold their positions in that they refused or failed to perform within the statutory and constitutional limits of their authority and misused and abused their positions.

95. As a result of the negligence of Defendant CITY and the acts of Defendants P.O.

MARTINEZ, SGT. TAEJIN, LT. WILSON, P.O. ANTIDORMI, P.O. JOHN DOES 1-3, SGT. JOHN DOE 1 and LT. JOHN DOE 1, Plaintiff was caused to suffer severe and permanent personal injuries, pain and suffering, emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses, and damage to her reputation.

96. By reason of the foregoing, Defendants are liable to Plaintiff in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

AS AND FOR A NINTH CAUSE OF ACTION:
MUNICIPAL LIABILITY

97. Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "96" of the complaint as if fully set forth herein.

98. Defendants arrested Plaintiff despite a complete lack of evidence against her, notwithstanding their knowledge that said arrest would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

99. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials, with the entire actual and/or apparent authority attendant thereto.

100. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures and rules of CITY and the NYPD, all under the supervision of ranking officers of said department.

101. The aforementioned customs, policies, usages, practices, procedures and rules of NYC and the NYPD included, but were no limited to, making arrests and initiating and continuing criminal proceedings without evidence of criminal activity.
102. The foregoing customs, policies, usages, practices, procedures and rules of CITY and the NYPD were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.
103. Specifically, the customs, policies, usages, practices, procedures and rules of the CITY and NYPD included, but were no limited to, the following unconstitutional practices:
- a. Failing to properly train as to the protocols in conducting criminal investigations, particularly those involving nonviolent traffic violations;
 - b. Failing to properly train officers as to how to treat citizens, particularly those who charged with common traffic violations;
 - c. Failing to instruct and/or train officers in the use of force when affecting an arrest of a citizen for a common traffic violation ;
 - d. Failing to instruct and/or train officers to intercede if a fellow officer is using excessive force on a citizen during the investigation of a common traffic violation;
 - e. Failing to properly train and/or discipline officers who have previously displayed an aggressive or violent disposition;
 - f. Failing to instruct and/or train officers to report a fellow officer who has used excessive force and/or previously displayed an aggressive or violent disposition.
104. That the CITY knew about the unlawful and improper predispositions of Defendants P.O. MARTINEZ, SGT. TAEJIN, LT. WILSON, P.O ANTIDORMI ,P.O. JOHN DOES 1-3, SGT. JOHN DOE 1 and LT.JOHN DOE 1.; that nevertheless

the CITY consciously disregarded the risk of harm to Plaintiff and other citizens in her position that was posed and/or created by said police officers.

105. That in so doing, the CITY exhibited a deliberate indifference to the health, safety and welfare of the Plaintiff.

106. That the CITY knew with a moral certainty that Defendants P.O. MARTINEZ, SGT. TAEJIN, LT. WILSON, P.O. ANTIDORMI, P.O. JOHN DOES 1-3, SGT. JOHN DOE 1 and LT. JOHN DOE 1, would need to interact with civilians during the investigation of criminal and traffic violations. That the CITY further knew with a moral certainty Defendants P.O. MARTINEZ, SGT. TAEJIN, LT. WILSON, P.O. ANTIDORMI, P.O. JOHN DOES 1-3, SGT. JOHN DOE 1 and LT. JOHN DOE 1 had previously displayed and demonstrated violent, aggressive and/inappropriate demeanors that put the CITY on notice that said Defendants may act in an improper manner when dealing with civilians.

107. Nevertheless, the CITY was deliberately indifferent to the needs of those citizens, like the Plaintiff, and failed to properly train and/or supervise said officers; it was clear and foreseeable to the CITY that this failure to properly train police officers, like the individual defendants, would frequently cause the deprivation of a citizen's rights, and thus, the failure to properly train demonstrates a deliberate indifference to the needs of the citizens, such as the Plaintiff.

108. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiffs' constitutional rights.

109. Defendant CITY, as municipal policymaker in the training and supervision of Defendant police officers, pursued a policy and custom of deliberate indifference to the rights of persons in their domain who suffer violation of their right to freedom from the use of excessive and unreasonable force and freedom from deprivation of Liberty without Due Process of law in violation of the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C. § 1983, and the Constitution and laws of the State of New York.

AS AND FOR A TENTH CAUSE OF ACTION:
NEGLIGENCE

110. Plaintiff repeats and reiterates the allegations contained in paragraphs "1" through "109" of the complaint as if fully set forth herein.
111. On or about August 9, 2017, and at all times herein mentioned, Defendant, MAMADOU DIAGANA, was the owner of a 2014 Toyota bearing New York State license plate number HAMAHULA;
112. On or about August 9, 2017, and at all times herein mentioned, Defendant, MAMADOU DIAGANA, was the registrant of the aforesaid vehicle;
113. On or about August 9, 2017, and at all times herein mentioned, Defendant(s), MAMADOU DIAGANA, operated the aforesaid motor vehicle, bearing license plate number HAMAHULA;
114. On or about August 9, 2017, and at all times herein mentioned, Defendant(s), MAMADOU DIAGANA, controlled the aforesaid motor vehicle;

115. On or about, August 9, 2017, and at all times herein mentioned, Plaintiff(s), JOSEPH WAGNER, was a passenger in the vehicle owned by NEW YORK CITY POLICE DEPARTMENT and operated by P.O. MICHAEL JOHN ANTIDORMI ;
116. On or about, August 9, 2017, and at all times herein mentioned, DeKalb Avenue and Nostrand Avenue, Brooklyn, NY, were public roadways and/or thoroughfares;
117. On or about, August 9, 2017, at the aforesaid location, the vehicle owned by NEW YORK CITY POLICE DEPARTMENT and operated by P.O. MICHAEL JOHN ANTIDORMI, and the vehicle owned and operated by Defendant, MAMADOU DIAGANA, came into contact;
118. As a result of the occurrence, Plaintiff, JOSEPH WAGNER, was seriously injured;
119. That the aforesaid occurrence was caused wholly and solely by reason of the negligence of the Defendant(s) without any fault or negligence on the part of the Plaintiff contributing thereto;
120. That the negligence of the Defendants consisted of, but not limited to, operating the aforesaid motor vehicles in a negligent, reckless and careless manner; in failing to keep the aforesaid motor vehicles under reasonable and proper control; in failing to operate the aforesaid motor vehicles with due regard for the safety of the public and others; in failing to keep a proper lookout, in failing to observe what was available to be observed; in failing to observe the vehicle in which the Plaintiff was a driver; in operating the aforesaid motor vehicles in a manner contrary to, and in violation of, the statutes, ordinances, rules and regulations applicable and in existence on the date of the occurrence; in failing to provide and/or make prompt and timely use of adequate and efficient brake and steering mechanisms; in operating the aforesaid motor vehicles in

such a negligent, careless and reckless manner as to precipitate the aforesaid occurrence; in failing to take defensive action; and in failing to warn of the approach of the aforesaid motor vehicles, in going through a red light;

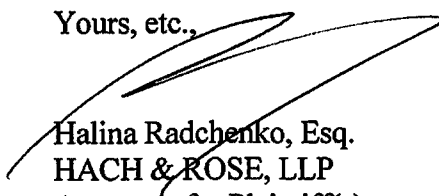
121. That by reason of the foregoing, Plaintiff(s), JOSEPH WAGNER, has sustained a serious injury as defined by Section 5102 of the Insurance Law;

122. That by reason of the foregoing, Plaintiff(s), JOSEPH WAGNER, has been damaged in an amount exceeding the jurisdictional limits of all lower courts of the State of New York.

WHEREFORE, Plaintiff respectfully requests judgment against the Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction, together with the costs and disbursements of this action.

Dated: New York, New York
August 1, 2018

Yours, etc.,



Halina Radchenko, Esq.
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Attorneys for Plaintiff(s)
JOSEPH WAGNER
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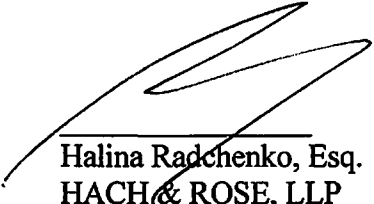
STATE OF NEW YORK }
 } ss.
COUNTY OF NEW YORK }

Halina Radchenko, being duly sworn, deposes and says:

That deponent is a member with HACH & ROSE, L.L.P., attorneys for Plaintiff(s), in the within action; that the deponent has read the foregoing **SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponents knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters deponent believes it to be true and the reasons that this verification is not made by the Plaintiff(s) and is made by deponent is that Plaintiff(s) does/do not reside in the county where the attorney for the Plaintiff(s) have their office.

Deponent further says that the source of deponent's information and the grounds of deponent's beliefs as to all matters not stated upon deponent's knowledge are from investigation made on behalf of Plaintiff(s).

DATED: NEW YORK, NEW YORK
 August 1, 2018



Halina Radchenko, Esq.
HACH & ROSE, LLP
112 Madison Avenue, 10th Floor
New York, NY 10016
(212) 779-0057

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

JOSEPH WAGNER,

Plaintiff(s),

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, P.O. PEARCE
MARTINEZ, SGT. LIM TAEJIN, LT. WILSON,
MICHAEL JOHN ANTIDORMI, MAMADOU DIAGANA, P.O. JOHN DOES I-III*

*Plaintiff is currently unaware of the names of P.O. John Doe 1, John Doe 2, and John Doe 3.,

Defendant(s).

SUMMONS AND COMPLAINT

HACH & ROSE, LLP

Attorneys for Plaintiff(s)

JOSEPH WAGNER

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